BEXAR COMMERCIAL UTILITY EASEMENTS LLC

90-DAY EXCLUSIVE PARKING & UTILITY LICENSE OPTION AGREEMENT

CONFIDENTIAL COMMERCIAL REAL ESTATE INSTRUMENT · BEXAR COUNTY, TEXAS

This 90-Day Option & Master License Summary ("**Agreement**") grants **Bexar Commercial Utility Easements LLC** ("**Licensee**") the exclusive option to license twelve (12) rear surface parking spaces and spare 480V electrical capacity at the property listed below ("**Property**") owned by the undersigned ("**Licensor**").

1. Property & Licensed Area	Approximately **2,400 sq. ft. (12 contiguous rear/side parking spaces)** at [Property Address, San Antonio, TX], plus non-invasive conduit path to the existing 480V switchgear/transformer pad.
2. Permitted Use	Placement of one self-contained, trailer/skid-mounted **Corporate IT & Edge Telecom Utility Enclosure** (<65 dBA acoustic rating) and skidded NEMA 3R exterior smart-meter collar.
3. 90-Day Exclusive Option	**$100.00 Option Fee** for a 90-day engineering & utility inspection period. **$0.00/month rent during Option Period.** Licensor grants Licensee access to inspect the outdoor CPS transformer tag, indoor 480V main breaker, and utility bills.
4. License Rent & Value-Add	**$7,500.00 / month NNN ($90,000 / year)** commencing strictly on the date of commercial energization ("**Turn-On Date**"), with **$0.00 Licensor TI cost** (adds +$1.38M in building value at a 6.5% cap rate).
5. Term & Parcel Exclusivity	Initial **5-Year Master License** with three (3) automatic **5-Year Renewal Options (20 years total; 3% annual escalator)**. Licensor grants parcel-wide exclusivity for third-party utility/IT enclosures.
6. CPS Power & Building Priority	Licensee pays **100% of its electricity** via a dedicated 2nd CPS Energy revenue meter on the transformer spades (or 1:1 sub-metered ACH pass-through at 0% markup + $4,000/yr franchise tax indemnity). Automated current-limiting hardware guarantees **100% power priority to Licensor's building** at all times.
7. Rolling Stock / UCC-1 Waiver	All enclosures, skidded switchgear, and crane mats remain **48-hour removable personal property / rolling stock (IRC § 168(k))**. Licensor waives all landlord liens (**UCC-1 Waiver**) in favor of Licensee's equipment lessor and allows unrestricted assignment to Licensee's project SPV or financing bank.
8. Broker Fee & 90-Day Exit Cap	Licensee pays procuring broker a flat **$25,000.00 commission** on the Turn-On Date. Post-commencement, Licensee may terminate on 90 days' notice with liability capped at 2 months of escrowed rent ($15,000).

EXECUTED AS A BINDING 90-DAY EXCLUSIVE OPTION:

LICENSEE: BEXAR COMMERCIAL UTILITY EASEMENTS LLC

By: _____

Name / Title: Authorized Signatory

Date: _____

LICENSOR (OWNER): [_____]

By: _____

Name / Title: _____

Date: _____